Sample Chapter: Frustration

A contract may be frustrated when performance becomes impossible.

In Taylor v Caldwell the hall burned down before the concerts could take place.

In Krell v Henry the purpose of hiring the rooms failed when the procession was cancelled.

Limits of frustration

In Herne Bay Steam Boat Co v Hutton the cruise still had some purpose, so there was no frustration.
In Davis Contractors v Fareham UDC extra cost and delay did not frustrate the building contract.
Self-induced frustration does not count, as Maritime National Fish v Ocean Trawlers shows.

Consequences

The Law Reform (Frustrated Contracts) Act 1943 deals with money paid before the event.

In Gamerco v ICM the court used its discretion under the Act after a stadium was found unsafe.